

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jayvee Rhoda (I)	Team: Intake	CCRB Case #: 201405041	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 05/16/2014 3:15 AM	Location of Incident: 103rd Precinct stationhouse	18 Mo. SOL 11/16/2015	Precinct: 103
Date/Time CV Reported Fri, 05/16/2014 3:52 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/22/2014 3:53 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Stephen Loschiavo	06880	949225	103 PCT
2. POM Joseph Aniano	00106	948620	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Aniano	Force: PO Joseph Aniano used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Stephen Loschiavo	Force: PO Stephen Loschiavo used physical force against § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On May 16, 2014, Lt. Diakonikolas filed this complaint with IAB via telephone on behalf of § 87(2)(b) who was injured while in police custody. The CCRB received IAB log number 14-17166 on May 22, 2014.

Between June 2, 2014, and September 3, 2014, nine calls were made to two phone numbers for § 87(2)(b). During the first call to § 87(2)(b)'s home number, § 87(2)(b) answered the phone but did not have time to speak. The following three calls to § 87(2)(b)'s home number resulted in automated messages with no option to leave voicemail. During the fifth call to § 87(2)(b)'s home number, an individual answered the phone and stated that she did not know § 87(2)(b). Call attempts to § 87(2)(b)'s mobile number confirmed that it was an incorrect telephone number. On May 28, 2014, and June 21, 2014, letters were mailed to § 87(2)(b) which were not returned by the United States Postal Service. A search of Lexis Nexis yielded a potential address for § 87(2)(b) and four additional phone numbers. Two of the phone numbers were confirmed to be incorrect numbers. Between September 4, 2014, and September 16, 2014, ten calls were made to the two other numbers. Those ten calls resulted in either voicemails being left or automated messages with no option to leave voicemail. White Pages, CTS, and COLE Directory searches yielded negative results for new contact information for § 87(2)(b). On August 30, 2014, and September 9, 2014, letters were mailed to the address obtained from the Lexis Nexis search, which were not returned by the United States Postal Service. On September 19, 2014, a call was made to IAB, and the liaison did not have any new contact information for § 87(2)(b). A search of the NYC Department of Correction Inmate Lookup Service confirmed that § 87(2)(b) was not incarcerated.

To date, § 87(2)(b) has failed to schedule an appointment and did not respond to subsequent contact attempts. Therefore, it is recommended that this case be closed as ***Complainant Uncooperative.***

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date